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datacap systems, inc.

NON-DISCLOSURE AGREEMENT

THIS NON-DISCLOSURE AGREEMENT (this "**Agreement**") is made and entered into as of the later of the two signature dates below (the "**Effective Date**") by and between DATACAP SYSTEMS, INC., a Pennsylvania corporation with an address at 100 New Britain Blvd., Chalfont, PA 18914 ("**DSI**") and

Appsmediaz Technologies, a **UP** **LLC**

[corporation/limited liability company] with an address at

Sector 16 **Greater Noida** **UP** **201301**

("**Company**").

WHEREAS, DSI and Company are exploring and evaluating opportunities for the possible establishment of a business relationship (the "**Transaction**"); and

WHEREAS, in connection with such discussions, each party and its Representatives (as defined herein) may disclose and reveal to the other party, either orally, in writing or otherwise, certain trade secrets, proprietary information and other confidential information relating directly or indirectly to such party, its operations and/or business.

NOW, THEREFORE, in consideration the disclosure of the Confidential Information by each party, the covenants contained herein, and other good and valuable consideration, the receipt and sufficiency of all of which is hereby acknowledged, the parties hereto, intending to be legally bound, agree as follows:

1. Definitions.

(a) For the purposes of this Agreement, "**Confidential Information**" means any and all information relating to the past, present or future business of such party in whatever form transmitted, tangible or intangible, disclosed, furnished or otherwise provided or made available by the Disclosing Party or its Representatives to the Receiving Party prior to or after the Effective Date. Confidential Information includes all trade secrets and information, whether or not originated by the Disclosing Party, submitted by the Disclosing Party or its Representatives to the Receiving Party or its Representatives, including, without limitation, all information relating to the Disclosing Party's business operations or the business operations of its Affiliates and is (i) proprietary to, about or created by or for the Disclosing Party; (ii) gives the Disclosing Party some competitive business advantage or the opportunity of obtaining such advantage or the disclosure of which could be detrimental to the interests of the Disclosing Party or its Affiliates; (iii) designated as Confidential Information by the Disclosing Party, or from all the relevant circumstances should reasonably be assumed by the Receiving Party to be confidential and proprietary to the Disclosing Party; (iv) not generally known by non-Disclosing Party's personnel. Confidential Information includes, without limitation, information relating to the Parties' software systems and their respective interfaces and data structure, any data provided for the purposes of populating an instance of such systems, the terms of this Agreement and any negotiations, discussions or agreements between the parties, functional overviews or diagrams of software systems and/or card order processing processes, logical and physical production modules of systems, order management and physical production methods, work flow and procedures, templates, portals, know-how, business strategies or plans, research and development activities, techniques, pricing policies, summaries, operations, systems, calculations and specifications, data, diagrams, designs, drawings and prototypes, inventions and conceptions of inventions (whether or not patentable, whether or not reduced to practice and whether or not yet made the subject to a pending patent or patent application or applications), ideas, improvements, methods, processes, concepts and research, market studies, customer lists, the terms and conditions of any proposed (or actual) license agreement, technologies, software and computer programs (including without limitation, object code and source code), databases, schema, algorithms, graphical user interfaces, and systems and architectures. As used herein, the term "Confidential Information" shall also include, without limitation, documents, correspondence, memoranda, email or other electronic

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communication, summaries, reports, proposals, presentations, or other materials containing or reflecting, in whole or in part, any Confidential Information of the Disclosing Party that are created or caused to be created by or on behalf of the receiving party or its Representatives. Failure to mark any information as confidential or proprietary shall not adversely affect its status as Confidential Information.

(b) Any trade secrets of the Disclosing Party will also be entitled to all of the protections and benefits of applicable trade secret laws and any other applicable laws; provided, however, that the Disclosing Party shall not, in order to be entitled to such protections and benefits, be subject to, and the receiving party hereby waives, any requirement that the Disclosing Party submit proof of the economic value of any trade secret or post a bond or other security. For avoidance of doubt, the parties acknowledge and agree that, in the event a court of competent jurisdiction determines that information that the Disclosing Party deems to be a trade secret is not a trade secret under applicable law, such information will nevertheless be deemed to be Confidential Information for purposes hereof.

(c) Notwithstanding the foregoing, "Confidential Information" shall not mean information that Receiving Party can clearly establish by written evidence to have been: (i) publicly available or otherwise in the public domain through no wrongful act of Receiving Party, (ii) independently developed by the Receiving Party without any use of the Confidential Information, or (iii) rightfully furnished to the Receiving Party from any third party without violation or breach of any confidentiality restriction. For purposes of this Agreement, the Confidential Information shall not be deemed in the public domain merely because it may be embraced by more general disclosures, or may be derived from combinations of disclosures that are in the public domain, but nonetheless shall be deemed confidential if collected and combined in a form which is not generally available to the public.

(d) Except as otherwise indicated in this Agreement, the term "**Disclosing Party**" shall mean, with respect to any information disclosed by one party to the other, the party which, directly or through one of its Representatives or Affiliates, discloses such information. "**Receiving Party**" shall mean, with respect to any information disclosed by one party or its Representatives or Affiliates, the party that receives such information. An "**Affiliate**" means any person, partnership, joint venture, corporation or other form of enterprise, domestic or foreign, including but not limited to subsidiaries, that directly or indirectly control, are controlled by, or are under common control with a party hereto.

2. Obligations Regarding Confidential Information.

(a) At all times during the term of this Agreement and thereafter, each party shall:

(i) Refrain from disclosing any Confidential Information of Disclosing Party to third parties and hold all Confidential Information received from the other party in strict confidence, except as expressly provided in Section 2(b) and Section 2(c) of this Agreement; and

(ii) take reasonable security precautions, at least as great as the precautions it takes to protect its own confidential information, but no less than reasonable care, to keep confidential the Confidential Information of Disclosing Party and avoid disclosure, loss or misuse of the Confidential Information; and

(iii) refrain from disclosing, reproducing, transmitting, summarizing, making available, and/or distributing Confidential Information of Disclosing Party; and

(iv) segregate all Confidential Information from the materials of all others not party to this Agreement in order to prevent commingling; and

(v) refrain from communicating any information to the other in violation of the proprietary rights of any third party; and

(vi) not alter or remove any copyright, proprietary rights notice, or identification which indicates the Disclosing Party's ownership, from any part of the Confidential Information.

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(vii) refrain from using any of the Confidential Information for any purpose (including without limitation in its own business or for its own benefit) except to the extent specifically necessary to evaluate the Transaction.

(viii) not use any of Disclosing Party's Confidential Information in any open artificial intelligence environment or large language models, such as but not limited to ChatGPT, Google's Bard, Meta's LLaMA, variations thereof, and the like.

(b) The Receiving Party may disclose Confidential Information to its officers, directors, employees, agents and professional advisors ("**Representatives**") who need to know the information for the purpose of evaluating the Transaction; provided that the Receiving Party shall notify each such Representative of the terms of this Agreement. Each party further agrees to: (i) take all reasonable measures to ensure that its Representatives comply with the provisions of this Agreement, (ii) assume responsibility for all acts, omissions and breaches of this Agreement by its Representatives, (iii) comply with all applicable laws in the exercise of its rights and performance of its obligations under this Agreement, and (iv) take such further actions and provide such further information as the other party may reasonably request in order to comply with the provisions of this Agreement or any applicable law.

(c) In the event that the Receiving Party or any of its Representatives are legally required to disclose any Confidential Information, the Receiving Party will give the Disclosing Party prompt written notice of such request or requirement so that the Disclosing Party may seek an appropriate protective order or other remedy and/or waive compliance with the provisions of this Agreement, and the Receiving Party will reasonably cooperate with the Disclosing Party, at the Disclosing Party's expense, to obtain such protective order. In the event that such protective order or other remedy is not obtained or the Disclosing Party waives compliance with the relevant provisions of this Agreement, the Receiving Party will furnish only that portion of the Confidential Information that is legally required to be disclosed.

(d) Upon request by the Disclosing Party, the Receiving Party shall return to Disclosing Party within five (5) business days after such request all documents, materials and any other items containing Confidential Information (including without limitation, all originals, copies, and reproductions of the Confidential Information) or, upon request of the Disclosing Party, destroy, and shall cause its Representatives to destroy, such Confidential Information (including information stored electronically), and certify to the other party in writing that such action has been taken. Compliance with this Section 2(d) shall not relieve the Receiving Party of its other obligations under this Agreement.

(e) Ownership of all Confidential Information shall remain the property of the Disclosing Party. No license under any patent, trademark, copyright or other intellectual property or proprietary right is granted or implied to any information furnished by either party or its Representatives or Affiliates to the other party, whether or not Confidential Information. The parties acknowledge and agree that the Disclosing Party is providing Confidential Information to the Receiving Party for the sole purpose of evaluating the Transaction. Notwithstanding anything herein to the contrary, the Receiving Party agrees, on behalf of itself and its Representatives and Affiliates, that it shall not use or exploit the Disclosing Party's Confidential Information as a source or reference to conceive, create, develop or offer any product or service similar in form, function or concept to the Disclosing Party's products or services or other Confidential Information.

3. Remedies.

(a) In the event that the Receiving Party is in or reasonably believes itself to be (or to have been) in material breach of any provision of this Agreement or upon the Receiving Party's discovery of any loss, misuse, misappropriation or disclosure of Confidential Information by the Receiving Party or its Representatives, it shall immediately notify the other party and take steps to remedy such breach (if not already remedied), including but not limited to protecting the Disclosing Party, its Affiliates and their customers against the consequences of any unauthorized access to, use or disclosure of Confidential Information, and shall take such other reasonable measures as the Disclosing Party may reasonably request in order to safeguard the confidentiality and security of such Confidential Information.

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(b) Each party acknowledges and agrees that failure to adhere to the terms of this Agreement will cause the other party irreparable damage for which monetary damages alone would be inadequate compensation. In the event of any violation of this Agreement, the Disclosing Party shall be entitled to specific performance and injunctive relief, without any showing of irreparable harm or damage, and the Receiving Party hereby waives any requirement for the securing or posting of any bond or showing actual damages in connection with such remedy. Such remedies shall not be deemed to be the exclusive remedies for any breach of this Agreement, but will be in addition to all other remedies available at law or in equity to the Disclosing Party.

(c) The Receiving Party agrees to indemnify, defend and hold harmless the Disclosing Party from and against any and all causes of action, claims, actions and suits, whether groundless or otherwise, and from and against any and all losses, liabilities, damages, cost (including reasonable attorneys' and accountants' fees and charges), interest and other expenses of every nature and character resulting from the breach of any covenant made by the Receiving Party in or pursuant to this Agreement including, without limitation, disclosure or use of Confidential Information or breach of this Agreement by the Receiving Party or any of its Representatives, or any person who acquires Confidential Information from such persons.

(d) The rights and remedies of each party under this Agreement are cumulative, are in addition to any other rights and remedies available at law or in equity, and are not subject to or limited by the provisions set forth in any Agreement between the parties.

4. Miscellaneous.

(a) Neither the holding of discussions nor the exchange of materials or Confidential Information shall be construed as (i) an obligation of a party hereto to enter into any agreement with the other party hereto; (ii) a commitment or obligation by a party hereto to develop, sell or contract with respect to any products or services offered by a party; or (iii) a license, partnership or joint venture between the parties.

(b) All Confidential Information is provided "AS IS" and without any warranty, express, implied or otherwise, regarding such Confidential Information's accuracy or performance. Each party understands and agrees that neither party nor any of its Representatives: (i) has made any representation or warranty, express or implied, as to the accuracy or completeness of the Confidential Information or the fitness of the Confidential Information for any particular purpose, or that the Confidential Information does not infringe any proprietary right of any third party, or (ii) shall have any liability whatsoever to the other party or its Representatives relating to or resulting from the use of the Confidential Information or any errors therein or omissions therefrom.

(c) This Agreement shall be interpreted, construed and enforced in accordance with the laws of the Commonwealth of Pennsylvania without regard to conflicts of laws principles. Except as otherwise expressly provided by applicable state law or regulation, the Parties agree and consent to the exclusive jurisdiction and venue of the Court of Common Pleas of Bucks County, Pennsylvania and the United States District Court for the Eastern District of Pennsylvania with respect to any proceedings arising out of or in connection with this Agreement.

(d) Should any one or more of the provisions of this Agreement be determined to be illegal or unenforceable, then the illegal or unenforceable provision shall be modified by the proper court or arbitrator to accomplish the objectives of such provision to the greatest extent possible under applicable law, and the modified provision and all other provisions of this Agreement shall be given effect separately from the provision or portion determined to be illegal or unenforceable and shall not be affected by the modification.

(e) Neither the failure nor any delay by either party in exercising any right, power or privilege under this Agreement will operate as a waiver thereof, nor shall any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power or privilege hereunder.

(f) Any amendment or modification of the terms and conditions set forth herein or any waiver of such terms and conditions must be agreed to in a writing signed by the parties hereto. This Agreement may be executed in counterparts, each of which will be deemed an original, but all of which together will constitute one and the same agreement. Signatures to this Agreement transmitted by facsimile transmission, by electronic mail in "portable

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document format" (.pdf) form, or by any other electronic means intended to preserve the original graphic and pictorial appearance of a document, will have the same effect as physical delivery of the paper document bearing the original signature.

(g) Any notices required or permitted by this Agreement shall be in writing and shall be delivered as follows, with notice deemed given as indicated: (i) by personal delivery, when delivered personally; (ii) by overnight courier, upon written verification of receipt; or (iii) by certified or registered mail, return receipt requested, upon verification of receipt. Any notice shall be sent to the addresses set forth above or to such other address as either party may specify in writing.

(h) This Agreement shall be deemed to have been drafted by each party hereto and shall not be construed against any party by reason of the drafting or preparation. The parties expressly agree not to assert that any inference should be drawn against either party on the basis of which party drafted the Agreement or any particular clause thereof.

(i) This Agreement sets forth the entire agreement of the parties with regard to the subject matter hereof, and supersedes all prior and contemporaneous negotiations, agreements, arrangements and understandings, whether written or oral. This Agreement expressly supplements any and all agreements between the parties, whether existing now or in the future, and amends any and all provisions contained therein that are less protective of either party's confidential information. In the event of any conflict or ambiguity between the provisions of this Agreement and the provisions of any other agreement between the parties, the provisions of this Agreement shall control.

(j) Either party may terminate this Agreement with or without cause upon ninety (90) days prior written notice to the other party. All sections of this Agreement relating to the rights and obligations of the parties concerning Confidential Information shall survive any such termination for a period of three (3) years; provided, however, that Confidential Information that the Disclosing Party can demonstrate is a "trade secret" under applicable law shall be entitled to protection for such longer period as is provided under such law.

IN WITNESS WHEREOF, the parties, intending to be legally bound, have executed this Agreement as of the Effective Date by the undersigned authorized representatives of DSI and Company.

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DATACAP SYSTEMS, INC.

By: Signed by: Justin Zeigler B010618C9E0545F...

Name: **Justin Zeigler**

Title: **VP Product**

Date: **12/19/2024**

Appmediaz Technologies

By: Signed by: Amit Singh 1DBF1B36CC1B4E2...

Name: **Amit Singh**

Title: **VP Sales**

Date: **12/19/2024**